

25VECV00278 25VECV00278

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-28

Motion: DEFENDANTS UPLIFT LAW, PC AND MELISSA FULGENCIO'S MOTION FOR SUMMARY JUDGMENT OR, ALTERNATIVELY, FOR SUMMARY ADJUDICATION

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Case Number: 25VECV00278 Hearing Date: August 28, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST
DISTRICT

WAYNE JOSEPH QUINT, III,

Plaintiff,

vs.

UPLIFT LAW, PC; MELISSA FULGENCIO; and DOES 1 through 10,
inclusive,

Defendants.

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CASE NO: 25VECV00278

[TENTATIVE] ORDER RE: DEFENDANTS UPLIFT
LAW, PC AND MELISSA FULGENCIO'S MOTION FOR SUMMARY JUDGMENT OR,
ALTERNATIVELY, FOR SUMMARY ADJUDICATION

Dept. U

8:30 a.m.

August 28, 2026

A. BACKGROUND

This case is an
employment and disability discrimination action filed by Plaintiff Wayne Joseph
Quint III ("Plaintiff") against Defendants Uplift Law, PC ("Uplift") and
Melissa Fulgencio ("Fulgencio") (collectively, "Defendants"). Plaintiff, an attorney, is self-represented.[1]

On January 21,
2025, Plaintiff filed his complaint against Defendants, alleging: (1) failure

to pay overtime in violation of Labor Code sections 510, 1194 and 1198; (2) failure to pay all wages due in violation of Labor Code sections 200, 204, and 218; (3) waiting time penalties in violation of Labor Code sections 201-203; (4) inaccurate wage statements in violation of Labor Code section 226 (a); (5) whistleblower retaliation in violation of Labor Code section 1102.5; (6) disability discrimination in violation of Government Code section 12940 (a); (7) failure to accommodate in violation of Government Code section 12940 (m); (8) failure to engage in the interactive process in violation of Government Code section 12940 (n); (9) disability harassment in violation of Government Code section 12940, et seq.; (10) intentional infliction of emotional distress ("IIED"); and (11) unfair competition in violation of Business and Professions Code section 17200.

On May 28, 2026,
Defendants filed the instant motion for summary judgment.

On July 27, 2026,
Plaintiff filed an ex parte application for an order continuing trial and related dates, continuing the hearing on Defendants' motion for summary judgment, and specially setting of shortening time on Plaintiff's motions to compel. On July 29, 2026, this Court
granted Plaintiff's application in part, continuing the opposition due date 14 days. (See 7/29/26 Minute Order.)

On August 14,
2026, Plaintiff filed an opposition.

On August 21,
2026, Defendants filed their reply.

B. RULING

Defendants Uplift Law, PC and Melissa Fulgencio's motion for summary judgment is DENIED.

Defendants' motion for summary adjudication is DENIED as to the first, second, third, fourth, fifth, sixth, seventh, eighth, ninth, tenth, and eleventh causes of action.

C. LEGAL

STANDARD

The purpose of a motion for summary judgment “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.”² Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843; Code Civ. Proc., § 437c (c).³ Courts “liberally construe the evidence in support of the party opposing summary judgment or summary adjudication and resolve doubts concerning the evidence in favor of that party.”⁴ Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.⁵ However, if all inferences reasonably deducible from the submitted evidence are uncontradicted by other inferences and there is no triable issue as to any material fact, the moving party is entitled to summary judgment as a matter of law.⁶ Code Civ. Proc., § 437c (c); Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.

D. RULINGS

ON OBJECTIONS TO EVIDENCE

Plaintiff submits six evidentiary objections to Defendants’ evidence submitted in support of their motion for summary judgment. Plaintiff’s objections are overruled.

Defendants submit nine evidentiary objections to Plaintiff’s evidence. Defendants’ objections are overruled.

E. DISCUSSION

Defendants move for summary judgment or, alternatively, for summary adjudication of Plaintiff’s complaint.

1. Review of Allegations in the Complaint.

Plaintiff’s complaint states that, in September 2023, Plaintiff responded to a job posting advertising a full-time associate attorney position with Uplift. (Compl., ¶ 9.) Plaintiff pleads that:

.
Fulgencio told Plaintiff he would be guaranteed full-time hours during the interview.

(Compl., ¶ 10.)

.
Fulgencio stated Plaintiff was expected to work only for Uplift and to be available during all business hours. (Compl., ¶ 11.)

.
Fulgencio sent Plaintiff an email on September 27, 2023, offering an initial rate of \$60 per hour with a promised increase to \$70 per hour after 90 days, as well as healthcare benefits after three months. (Compl., ¶ 13.)

.
Plaintiff began work for Uplift in October 2023. (Compl., ¶ 14.)

Plaintiff further pleads:

.
Defendants maintained control over his work inconsistent with independent contractor status throughout Plaintiff's employment. (Compl., ¶ 15.)

.
Defendants required Plaintiff to work exclusively for Uplift and that he had no independent discretion in how work was completed. (Compl., ¶¶ 16, 20.)

.
Defendants held Plaintiff out as an employee, featuring Plaintiff on Uplift's website as "Associate Counsel," requiring Plaintiff to travel for mandatory team photos, and directing Plaintiff to list Uplift as his principal place of business on his California State Bar profile. (Compl., ¶¶ 18, 25, 26.)

Plaintiff pleads

Defendants were aware Plaintiff is considered to be rated 100 percent disabled

by the United States Department of Veterans Affairs, and that Defendants nonetheless required Plaintiff to engage in physically taxing work without proper accommodations. (Compl., ¶ 30.)

Plaintiff also pleads:

.
he participated in an intensive trial in October 2024, during which Defendants required Plaintiff and other team members to stay in a shared house throughout the trial period. (Compl., ¶ 35.)

.
Defendants failed to provide accommodations, despite the demanding trial schedule and Plaintiff's known disabilities. (Compl., ¶ 36.)

.
he collapsed on October 10, 2024, and Fulgencio ordered Plaintiff to appear in court the next day. (Compl., ¶¶ 37, 39.)

.
his condition worsened to such a degree he had to return to North Carolina, and

.
Defendants still required him to work the entire trial remotely. (Compl., ¶¶ 41, 42.)

Plaintiff alleges that Defendants terminated his employment within hours of when he sent an email to Defendants outlining wage and hour violations resulting from Plaintiff's misclassification as an independent contractor and fraudulent billing issues brought to Plaintiff's attention by a client. (Compl., ¶¶ 51, 52, 55.)

2. Review
of Defendants' Submitted Evidence.

Defendants submit
the following evidence in support of their motion:

.

Documents related to Plaintiff's hiring, including job listings, offer email, non-disclosure agreements, and Plaintiff's resume. (Exhs. 1-5.)

.

Records and timesheet information for Plaintiff. (Exh. 6.)

.

Messages between Fulgencio and Plaintiff concerning medical condition, travel, remote work, trial attendance, and trial preparation. (Exh. 7.)

.

Group chats involving Plaintiff. (Exhs. 8-9.)

.

January 7, 2025, email correspondence titled "Wayne's Working Status Going Forward." (Exh. 10.)

.

Excerpts from Plaintiff's deposition. (Exh. 11.)

.

Copies of pleadings in this case. (Exhs. 12-13.)

.

Copies of pleadings and declarations in other cases where Plaintiff identified himself as a contract attorney with other law firms. (Exhs. 14-15, 19.)

.

Delta Air Lines flight receipt for Plaintiff. (Exh. 16.)

.

January 21, 2025, email correspondence involving Plaintiff and Fulgencio. (Exh. 17.)

LinkedIn profile printout for Plaintiff. (Exh. 18.)

Defendants'

evidence shows the job listings identified the status of the position as independent contractor, describing remote work and flexible or self-selected hours. (Defendants' Undisputed Material Facts ("UMF") # 13.) Plaintiff knew that Uplift classified him as an independent contractor and continued working with that knowledge. (UMF # 22.) Fulgencio never told Plaintiff he was prohibited from performing legal work for other law firms, and Plaintiff continued outside work. (UMF # 24, 25, 27, 31.) Plaintiff worked remotely and Fulgencio did not control Plaintiff's minute-by-minute schedule or the physical manner in which he performed tasks. (UMF # 41, 42.)

With regard to Plaintiff's

January 5, 2025, email communication about alleged fraudulent billing, Plaintiff characterized the issue as negligence, testifying he did not believe Fulgencio was fraudulent. (UMF # 60.) Fulgencio understood Plaintiff's January 7, 2025, titled "Wayne's Working Status Going Forward" to be an attempted compensation and role renegotiation. (UMF # 62, 63.) Fulgencio terminated Plaintiff's employment based on a breakdown in the working relationship, not because Plaintiff made a protected complaint. (UMF # 65-67.)

Defendants'

evidence shows that: (1) Plaintiff did not identify any specific accommodations needed, and (2) Plaintiff had all accommodations needed when Plaintiff was working from his home office. (UMF # 71, 72.) Plaintiff had the option to participate in the October 2024 trial remotely but chose to attend in person. (UMF # 82-84.) Further, Plaintiff testified that he never thought he was being punished for his medical condition. (UMF # 101.)

3. Defendants

fail to meet their summary judgment burden.

Defendants move

for summary judgment of Plaintiff's complaint.

i. First

Cause of Action

Defendants argue that the first through fourth causes of action fail because Plaintiff was an independent contractor and not an employee. (Mot., p. 5.) The first through fourth causes of action are brought under the Labor Code,[2] which applies to employees, not independent contractors.

A worker does not obtain any of the protections or benefits of applicable labor laws and regulations if properly classified as an independent contractor rather than employee. (Dynamex Operations W. v.

Supr. Ct. (2018) 4 Cal.5th 908, 913; *Whitlach v. Premier Valley, Inc.* (2022) 86 Cal.App.5th 673, 684.)

“Whether a person is an employee or an independent contractor is ordinarily a question of fact but if from all the facts only one inference may be drawn it is a question of law.” (*Jackson v. AEG Live, LLC* (2015) 233 Cal.App.4th 1156, 1179.)

As an initial

matter, the Borello test is the one that applies to the question of whether Plaintiff was an employee. (See *S.G.*

Borello & Sons, Inc. v. Department of Industrial Relations (1989) 48

Cal.3d 341.) Per Labor Code § 2783, the ABC test laid out in *Dynamex* for determining employee and independent contractor status does not apply to “[a]n individual who holds an active license from the State of California and is practicing one of the following recognized professions: lawyer, architect, landscape architect, engineer, private investigator, or accountant.” (Lab. Code § 2783, subd. (c).) It is undisputed

that the services that Plaintiff provided here were those of an attorney.

Under Borello, “the

principal test of an employment relationship is whether the person to whom service is rendered has the right to control the manner and means of accomplishing the result desired.” (*Borello*, supra, 48 Cal.3d at p. 350.) Although this is the “most

significant” factor, courts also consider the right to discharge at will, whether the worker is engaged in a distinct occupation, whether the kind of work is that usually performed by an independent contractor, the skill required for the work, whether the principal supplies the equipment for the work, the length of time spent working for the principal, the method of payment, whether

the work is part of the principal's regular business, and the parties' subjective beliefs about the relationship. (Id. at pp. 350–351.)

The undisputed evidence is as follows:

.

The job postings identified the status of the position as an independent contractor with remote work and flexible or self-selected hours. (Plaintiff's Response to UMF ("RUMF") # 13.)

.

Plaintiff negotiated and accepted an hourly rate arrangement. (RUMF # 18.)

.

Plaintiff understood Uplift classified him as an independent contractor. (RUMF # 22.)

.

Fulgencio never told Plaintiff that he was prohibited from performing legal work for other firms or explicitly ordered Plaintiff to stop working for other firms. (RUMF # 24-25.)

.

Plaintiff continued other legal work after starting with Uplift. (RUMF # 26.)

.

Uplift did not provide any physical office supplies for Plaintiff's remote work, but provided an Uplift email address, access to systems needed for Uplift work, access to Westlaw, and a forwarding phone number. (RUMF # 32-33.)

.

Fulgencio assigned work and deadlines, and reviewed Plaintiff's work product. (RUMF # 34.)

Defendants have

failed to establish that, from all the facts, the only inference that may be drawn is that Plaintiff is an independent contractor under the Borello standard. Several factors weigh toward independent contractor classification. First, Plaintiff was engaged in a distinct business, providing attorney services to Defendants. Additionally, Plaintiff continued to provide attorney services to other law firms.

Second, Defendants did not provide any office space or any hardware for remote work, such as office supplies or a laptop. Third, it is undisputed that Plaintiff and Defendants understood the role to be an independent contractor.

However, factors also weigh in favor of employee classification.

First, Fulgencio exerted control over Plaintiff's work. Defendants assigned all work that Plaintiff was to perform, setting internal deadlines and approving all work. Second, Defendants provided some instrumentalities to Plaintiff to conduct work, including an email address and phone number, as well as access to Westlaw—tools instrumental to remote work. Third, Plaintiff was paid an hourly rate.

Based on the foregoing, Defendants have failed to establish the only reasonable inference is independent contractor status. The Court is therefore unable to conclude as a matter of law that Plaintiff was an independent contractor. Defendants' motion for summary adjudication is denied as to the first, second, third, and fourth causes of action on these grounds.

ii. Second

Cause of Action

Defendants further argue the second cause of action fails independent of Plaintiff's contractor-classification because Plaintiff cannot establish earned wages that were submitted, due, and unpaid. (Mot., p. 6.)

Wages include all amounts for labor performed by employees, however calculated. (Lab. Code, § 200.) Defendants submit Fulgencio's declaration in support of their argument, where Fulgencio declares that Plaintiff

was (1) paid at the applicable hourly rate for the time he submitted for payment, and (2) Plaintiff did not identify a specific timesheet or invoice he submitted where he did not receive payment. (Fulgencio Decl., ¶ 20.) The Court finds that Defendants have met their initial burden on the second cause of action. Fulgencio's testimony is competent evidence that the Plaintiff was paid all wages owed. A court may consider a single witness's testimony in determining whether a triable issue exists. (Code Civ. Proc., § 437c, subd. (e).) The burden thus shifts to Plaintiff to establish a triable issue of material fact.

Plaintiff argues

Defendants' entire evidentiary basis rests on a single paragraph of the Fulgencio declaration, which is contradicted by Fulgencio. (Opp., p. 10.) Plaintiff argues he was required to reconstruct his December time from memory, and it is therefore a triable issue as to whether all earned wages were paid.

(Opp., p. 10.) Plaintiff submits

a transcript of Fulgencio's deposition in support of his argument. When asked how she calculated the final amount of pay, since Plaintiff was locked out of the system, Fulgencio stated she paid "whatever [Plaintiff] came up with, I just paid." (Plaintiff's Compendium of Evidence, Exh. 2, 172:10-17.)

The Court finds Plaintiff

has met his burden establishing a triable issue of material fact. Based on the December time entries via Plaintiff's recollection, there is a triable issue as to whether all time was accounted for and all wages were paid to Plaintiff. Defendants' motion for summary adjudication is denied as to the second cause of action on these grounds.

iii. Third

Cause of Action

Defendants argue

the third cause of action fails independent of Plaintiff's contractor-classification because Plaintiff cannot establish earned and unpaid wages due at separation, or a willful failure to pay wages due at separation. (Mot., p. 7.)

Labor Code section

203 provides that, if an employer willfully fails to pay any wages earned and unpaid at separation, the wages of the employee shall continue at the same rate as a penalty for up to thirty days. (Lab. Code, § 203, subd. (a).) The penalty is

derivative of the underlying wage obligation: it requires wages that were earned, unpaid at the time of separation, and willfully withheld. A good faith dispute that any wages are due precludes the penalty, but whether a good faith dispute exists and whether the failure to pay was willful are ordinarily questions of fact. (Naranjo v. Spectrum Security Services, Inc. (2024) 15 Cal.5th 1056, 1065, 1087.)

Defendants again

submit Fulgencio's declaration in support of their argument, where Fulgencio declares Plaintiff was paid at the applicable hourly rate for the time he submitted for payment, and Plaintiff did not identify a specific timesheet or invoice he submitted where he did not receive payment. (Fulgencio Decl., ¶ 20.) The Court finds Defendants have met their initial burden. The burden thus shifts to Plaintiff to establish a triable issue of material fact.

Plaintiff argues

unpaid overtime premiums were unpaid at separation and remain unpaid. (Opp., p. 10.) Plaintiff submits Fulgencio's deposition transcript in support of his argument.

For the reasons

stated above as to the second cause of action, there is a triable issue as to whether all earned wages, including any statutory overtime premiums, were paid. Plaintiff's final compensation was reconstructed from memory and paid after Plaintiff was locked out of the system, with Fulgencio testifying that she paid "whatever [Plaintiff] came up with." (Plaintiff's Compendium of Evidence, Exh. 2, 172:10-17.) Fulgencio further testified no overtime premiums were paid if someone was an independent contractor. (Plaintiff's Compendium of Evidence, Exh. 1, 41:10-18.)

If Plaintiff were an employee, which the Court has found is a triable issue, a trier of fact could conclude the overtime premiums were earned and unpaid at separation.

Further,

willfulness presents a triable issue for the same reason. Defendants' assertion of a good faith basis for nonpayment rests on their independent contractor classification, which the Court has found cannot be resolved as a matter of law. Where the existence of a good faith dispute turns on the same classification question reserved for trial, willfulness cannot be adjudicated on this record.

Defendants' motion

for summary adjudication is therefore denied as to the third cause of action on these grounds.

iv. Fourth

Cause of Action

Defendants argue

the fourth cause of action fails because Plaintiff cannot establish Defendants were required to issue Labor Code section 226 wage statements to him, as Plaintiff was an independent contractor, and cannot establish a knowing and intentional violation causing cognizable injury. (Mot., pp. 7-8.) Defendants argue that the fourth cause of action should be summarily adjudicated because Plaintiff is an independent contractor. As a result, and based on the discussion above regarding Plaintiff's classification, Defendant's motion for summary adjudication is denied as to the fourth cause of action.

v. Fifth

Cause of Action

Defendants argue

the fifth cause of action fails because Plaintiff cannot establish protected activity. (Mot., p. 8.) Defendants argue the January 5, 2025, report about allegedly fraudulent billing and the January 7, 2025, written communication concerning billing and wage-and-hour issues do not satisfy the protected-activity element of whistleblower retaliation. (Mot., p. 9.)

Labor Code section

1102.5, subdivision (b) prohibits retaliation for disclosing information the employee has reasonable cause to believe reveals a violation of law, including disclosures "to a person with authority over the employee." (Lab. Code, § 1102.5, subd. (b).) The plaintiff must show by a preponderance that the protected activity was a "contributing factor" in the adverse action, then the employer must prove by clear and convincing evidence that it would have taken the same action for legitimate, independent reasons. (Lab. Code, § 1102.6.)

The undisputed

evidence is as follows:

.

Plaintiff testified he wasn't sure if Defendants' billing practices were fraudulent, but that the client was charged for work never completed. (RUMF # 60.) The January 7, 2025, email reports prior client work was fraudulently charged, and that Plaintiff has willingly been a full-time employee without receiving any of the actual benefits of an employee. (RUMF # 63.)

The Court finds Defendants have met their moving burden. The undisputed evidence shows Plaintiff testified in his deposition "I don't think it was fraudulent. It was just mostly negligent on – I mean, maybe it was fraudulent, I don't know." (Defendant's Compendium of Evidence, Exh. 11, Quint Depo., 24:3-5.) Plaintiff further stated a client was charged with 110 hours where there should have been about 20 to 25 hours of work. (Id., at 23:14-15.) Under section 1102.5, an employee is only required to reasonably believe the information discloses a violation. Therefore, Plaintiff's January 5th and January 7th emails are protected activity.

However, Defendants submit evidence Defendants would have taken the same action for legitimate reasons. Defendants submit Plaintiff's deposition transcript, where Plaintiff acknowledged his January 7, 2025, email could be perceived as a performance issue because he stated he would keep working cases slowly. (Defendant's Compendium of Evidence, Ex. 11, 200:25-202:5.) Fulgencio further states she did not terminate Plaintiff based on any protected complaint, instead concluding the relationship was no longer workable and the arrangement was not in Uplift's best interests. (Fulgencio Decl., ¶ 31.) The Court therefore finds Defendants have met their initial burden establishing a defense to Plaintiff's whistleblower retaliation claim. The burden thus shifts to Plaintiff to establish a triable issue of material fact.

Plaintiff argues no written communication about terminating Plaintiff predates the January 5 email. (Opp., p. 12.) Further, Plaintiff argues, the first termination writing followed the January 5 email by less than two hours, and knowledge coupled with proximity in time is sufficient to establish causation. (Opp., p. 12.) Plaintiff

submits the transcript of Fulgencio's deposition in support of his argument. Fulgencio testified the decision to phase Plaintiff out was made in December, and that based on Plaintiff's actions on January 5th and 7th, the timeline was quickened. (Plaintiff's Compendium of Evidence, Ex. 1, 164:14-17.) This presents a triable issue of material fact as to whether Plaintiff's protected communications were a contributing factor to Plaintiff's termination. The plaintiff prevails on causation by showing retaliation was at least one contributing factor, even if legitimate factors also contributed. (Lawson v. PPG Architectural Finishes, Inc. (2022) 12 Cal.5th 703, 716.) Therefore, Plaintiff has met his burden.

Accordingly, Defendant's motion for summary adjudication is denied as to the fifth cause of action.

vi. Sixth
Causes of Action

Defendants argue the sixth through eighth causes of action fail because Plaintiff cannot establish covered employee status. (Mot., p. 10.) As discussed above, Defendants have not met their burden establishing all facts support an inference that Plaintiff is an independent contractor. Therefore, Defendants' motion for summary adjudication is denied as to the sixth through eighth causes of action on the grounds Plaintiff cannot establish covered employee status.

Defendants further argue the sixth cause of action fails because Plaintiff cannot establish a disability was a substantial motivating reason for any actionable adverse decision. (Mot., p. 11.) Defendants argue Plaintiff did not identify any specific accommodations needed and that he had all accommodations required when working from his home office. (Mot., p. 11.) Defendants contend Plaintiff himself testified he thought he was terminated because he told Fulgencio she was a bad lawyer. (Mot., p. 11.) Defendants further argue Fulgencio did not terminate Plaintiff because of any disability or medical condition. (Mot., p. 11.)

It

is an unlawful employment practice for an employer, because of physical disability of any person, to discharge the person from employment or to discriminate against the person in terms, conditions, or privileges of employment. (Gov. Code, § 12940, subd. (a).)

Defendants

submit Plaintiff's deposition testimony in support of their argument. Plaintiff testified that he thinks he was terminated because he told Fulgencio she was a bad lawyer, but that his "disability certainly had something to do with it." (Defendants' Compendium of Evidence, Ex. 11, 26:15-23.) Plaintiff further testified he "never thought" he was punished for his medical condition. (Defendants' Compendium of Evidence, Ex. 11, 161:8-22.)

Defendant's

submitted evidence does not negate an element of disability discrimination, nor does it establish a defense. Defendants do not cite to evidence that the decision to terminate was not based on Plaintiff's disability. Plaintiff's subjective belief about Defendants' motive does not negate an element of disability discrimination. Accordingly, Defendants have not met their initial burden.

Defendants'

motion for summary adjudication is denied as to the sixth cause of action on these grounds.

vii. Seventh

Cause of Action

Defendants argue the

seventh cause of action fails because Plaintiff cannot establish a denied specific reasonable accommodation. (Mot., p. 11.)

Defendants submit

Plaintiff's declaration in support of their argument. The undisputed evidence is as follows:

.

Plaintiff was unable to identify each accommodation requested from Uplift because he did not have access to WhatsApp communications. (RUMF # 79.)

.

When Plaintiff was working from his home office,
he had all accommodations he needed to complete work. (RUMF # 81.)

.

On October 9, 2024, Fulgencio sent Plaintiff
home to work the remainder of the trial. (RUMF # 86.)

.

Plaintiff did not ask to work remotely during
the October 2024 trial. (RUMF # 87.)

.

Uplift provided a chair for Plaintiff for
courtroom use during the trial. (RUMF # 88.)

To establish a
claim for the failure to provide a reasonable accommodation, a plaintiff
must demonstrate the following elements: (1) the employee suffered a
disability, (2) the employee could perform the essential functions of the job
with reasonable accommodation, and (3) the employer failed to reasonably
accommodate the employee's disability." (Nealy v. City of Santa Monica (2015)
234 Cal.App.4th 359, 373.)

Defendants have
failed to meet their moving burden to negate an element or establish a
defense. It is undisputed that Plaintiff
suffered a disability. Additionally,
Defendants cited evidence showing Plaintiff had proper accommodations when
working from home and could reasonably perform his job at home. However, Defendants do not negate the element
that the employer failed to reasonably accommodate the employee's disability. Defendants' offer to allow Plaintiff to work
remotely is not reasonable accommodation when Plaintiff was working the October
2024 trial in person.

Accordingly,
Defendants' motion for summary adjudication is denied as to the seventh cause
of action on these grounds.

Eighth Cause of Action

Defendants argue

the eighth cause of action fails because the undisputed record shows engagement, not a breakdown that caused the loss of any available accommodation. (Mot., p. 12.) Defendants argue Fulgencio asked Plaintiff about his medical condition, addressing work-from-bed options and Plaintiff's pain episodes. (Mot., p. 12.) Defendants contend Plaintiff provided no list of required items needed to operate in California and that Plaintiff had judicial ADA authorization to participate remotely. (Mot., p. 12.) Defendants further argue Plaintiff was sent home after it became apparent Plaintiff's condition required it. (Mot., p. 13.)

FEHA requires an

employer and a disabled employee to engage in a timely, good faith "interactive process" to identify or implement effective, reasonable accommodations that will enable the employee to perform their job effectively. (Gov. Code, § 12940, subd. (n); *Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1013.)

Defendants

submit Plaintiff's deposition in support of their argument, as well as messages between Fulgencio and Plaintiff. The undisputed facts are as follows:

.

Fulgencio and Plaintiff discussed his medical condition, working from bed, and whether Plaintiff would be able to handle the October 2024 trial. (RUMF # 91, 92.)

.

Plaintiff had a judicial ADA authorization to participate remotely in trial. (RUMF # 95.)

.

Fulgencio conducted welfare check-ins with Plaintiff, asking whether he was physically safe and okay mentally. (RUMF # 96.)

.

Fulgencio asked Plaintiff's wife what was needed

for Plaintiff to complete trial. (RUMF # 97.)

Defendants

fail to meet their moving burden negating an element or establishing a defense. Defendants' evidence reflects communication regarding Plaintiff's health and a judicial ADA authorization to participate remotely, which was not an accommodation provided by Defendants. Defendants' evidence further shows a conversation with Plaintiff's wife regarding accommodations. However, Defendants' submitted evidence does not show an interactive process occurred and that reasonable accommodations were provided as a result.

Defendants'

motion for summary adjudication is denied as to the eighth cause of action.

ix. Ninth

Cause of Action

Defendants argue

the ninth cause of action fails because Plaintiff cannot establish disability-based, severe, or pervasive harassment. (Mot., p. 13.) Defendants argue Plaintiff cannot create a triable harassment claim by relabeling accommodation-related or trial-management conduct as harassment. (Mot., p. 14.)

Harassment

requires conduct because of disability that is severe or pervasive enough to alter the conditions of the relationship and create an objectively and subjectively hostile environment. (Lyle v. Warner Bros. Television Prods. (2006) 38 Cal. 4th 264, 283.)

Defendants submit

Plaintiff's deposition transcript in support of their argument. The undisputed facts are as follows:

.

Fulgencio told Plaintiff to come into court on October 9, 2024, by saying she knows Plaintiff respects the chain of command. (RUMF # 104.)

.

Fulgencio sent Plaintiff home on October 9,

2024, to work. (RUMF # 105.)

The Court finds

Defendants have met their initial burden establishing the conduct was not severe or pervasive enough to alter the conditions of employment. Defendants submitted evidence reflects Plaintiff continued to work throughout the October 2024 trial, and after he returned home. Defendants have established conduct during the October 2024 trial and after was not severe or pervasive enough to alter the conditions of the working relationship. The burden thus shifts to Plaintiff to establish a triable issue of material fact.

Plaintiff argues a

jury could find a pattern of disability-directed hostility. (Opp., pp. 15-16.) Plaintiff submits Fulgencio's deposition testimony in support of his argument. Fulgencio made statements including

.

"Good Lord, why every time Wayne speaks it's a train wreck,"

.

"I know it's a disability but holy fuck,"

.

calling Plaintiff a "Hulk" and a "Dr. Jekyll and Mr. Hyde"

.

demanding "GOOD WAYNE," and

.

demanding Plaintiff come to court after his October 8 collapse.

(Plaintiff's Compendium of Evidence, Ex. 1, 120:16-21, 137:16-22, 151:9-15; Ex. 2, 69:16-70:7.)

The Court finds

Plaintiff has met his burden to establish a triable issue of material fact. Plaintiff's evidence is not

limited to management conduct and could be found to be disability-directed hostility.

Defendants' motion

for summary adjudication is therefore denied as to the ninth cause of action.

x. Tenth

Cause of Action

Defendants argue the

tenth cause of action fails because the alleged conduct was not extreme or outrageous and was not intended to cause severe emotional distress. (Mot., p. 14.) Defendants contend Plaintiff's

allegations challenge trial scheduling, work assignments, accommodation-related communications, and separation conduct, not conduct that exceeds all bounds tolerated in a civilized society. (Mot., p. 14.) Defendants contend Plaintiff cannot establish the intent or reckless-disregard element of an intentional infliction of emotional distress claim. (Mot., p. 15.)

"The elements of a

prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, citation and ellipses omitted.)

Defendants rely on

Fulgencio's declaration that she did not intend to cause Plaintiff emotional distress and did not act with reckless disregard of the probability of causing him such distress. (Fulgencio Decl., ¶ 32.)

The Court finds

Defendants have not met their initial burden.

Intent and reckless disregard are matters of Fulgencio's own state of mind, and Defendants seek to establish the absence of that state of mind solely through her own affirmation. Code of Civil Procedure section 437c, subdivision

(e), authorizes the Court to deny summary judgment in its discretion where “a material fact is an individual's state of mind, or lack thereof, and that fact is sought to be established solely by the individual's affirmation thereof.” (Code Civ. Proc., § 437c, subd. (e).) The Court declines to grant adjudication on the strength of that declaration alone.

Defendants' motion

for summary adjudication is denied as to the tenth cause of action.

xi. Eleventh

Cause of Action

Defendants argue

the eleventh cause of action fails because Plaintiff has no viable predicate violation and no recoverable UCL remedy. (Mot., p. 16.) Defendants argue Plaintiff's UCL claim is derivative of the previous claims and the unlawful-prong theory fails because each predicate theory fails. (Mot., p. 16.)

The Unfair

Competition Law (“UCL”) prohibits unlawful, unfair, or fraudulent business acts or practices, but its remedies are equitable and limited to injunctive relief and restoration of money or property acquired by means of unfair competition. (Bus. & Prof. Code, §§ 17200, 17203; Beverage v. Apple, Inc. (2024) 101 Cal.App.5th 736, 747; Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1144.)

Because

Plaintiff's first, second, fourth, fifth, sixth, seventh, eighth, and ninth survive, the derivative theory survives. Defendants have not met their initial burden. Accordingly, Defendants' motion for summary adjudication is denied as to the eleventh cause of action.

F. CONCLUSION

Defendants Uplift Law, PC and Melissa Fulgencio's motion for summary judgment is DENIED. Defendants' motion for summary adjudication is DENIED as to the first, second, third, fourth, fifth, sixth, seventh, eighth, ninth, tenth, and eleventh causes of action.

Defendants are ORDERED to give notice.

DATED: August 28, 2026

Lee S. Arian

Judge of the
Superior Court

[1] See *Harding*

v. *Collazo* (1986) 177 Cal.App.3d 1044, 1056 (self-represented litigants held to same standards applied to licensed attorneys); see also *Monastero v. Los Angeles Transit Co.* (1955) 131 Cal.App.2d 156, 160-161 ("litigant is permitted to present his own case, but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts").

[2]

Specifically: (1) Failure to Pay Overtime, Labor Code §§ 510, 1194, and 1198; (2) Failure to Pay All Wages Due, Labor Code §§ 200, 204, 218; (3) Waiting Time Penalties, Labor Code §§ 201-203; and (4) Inaccurate Wage Statements, Labor Code § 226(a).